



File No.: EXP202209568

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 3, 2022, a complaint was filed with the Spanish Agency for Data Protection against A.A.A., with NIF ***NIF.1 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that during their stay at the camping site of the complained party, their physical ID document was retained by the responsible parties of said entity for the entire duration of their stay, understanding that this procedure is inappropriate and may constitute an action contrary to data protection regulations.

A copy of the invoice for their stay at the facilities of the complained party's camping site is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 23, 2022, as evidenced by the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On November 3, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

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On January 31, 2023, the Data Inspection requested the complained party to provide the following information and documentation:

- 1.- Description of the procedure for the entry and registration of clients at the complained camping site, specifically indicating the identification documentation requested and the time for which such documentation is retained.
- 2.- Provision of technical reports or recommendations prepared by the Data Protection Officer or by the security officer, regardless of their format, regarding the treatments for which information is requested, as well as on subsequent actions taken or their absence, resulting from the aforementioned technical reports or recommendations.
- 3.- The decision made regarding this complaint.
- 4.- Report on the causes that led to the incident that originated the complaint.
- 5.- Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.
- 6.- Any other information deemed relevant.

On March 31, 2023, a document was received from the representative of the complained party, in the

capacity of technical advisor and Data Protection Officer, in response to the request from the Data Inspection, stating that, according to their client, it is not true that they retain clients' ID cards when accessing the camping stay; the only thing requested is the card from some associative camping entity. They state that in the 60 years their client has been managing the camping site, no one has ever reported such an issue, as it does not occur.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Principles regarding processing

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

III

Legitimacy for processing

In order for such processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

IV

Conclusion

The claimant states that during their stay at the campsite of the respondent, the physical document of

their ID card was retained by the responsible parties of that entity for the entire duration of their stay. The respondent states that it is not true that they retain the ID cards of clients when they access the campsite. They assert that in the 60 years they have been managing the campsite, no one has ever reported an issue like this, because it does not occur.

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During the preliminary investigation proceedings, it has not been possible to verify that the respondent retained the physical document of the claimant's ID card by the responsible parties of that entity.

The principle of presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve that doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions.

In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal.

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

In the present case, although the complaint could initially suggest that the respondent was retaining the ID cards of the campers, which would imply a violation of Article 5.1.c of the GDPR, in the terms already described, the documentation provided in the file has not been able to substantiate that this was the case.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

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SECOND: NOTIFY this resolution to A.A.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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